

The complaint

Mrs N complains that Catlin Insurance Company UK Ltd (Catlin) turned down a storm damage claim she made on a landlord household insurance policy.

What happened

In March 2019, Mrs N's tenant noticed water coming into the attic through the roof. There was some water damage in the attic and in one of the bedrooms. So Mrs N made a claim for storm damage on her landlord household insurance.

Catlin appointed a buildings surveyor to inspect Mrs N's property. The surveyor's report said there was no evidence of one-off storm damage to the roof. It said the roof was reaching the end of its design life. And it said the ridge pointing was deteriorating as the result of a gradually operating cause.

Based on the surveyor's report, Catlin turned down the claim. It said there wasn't evidence of storm conditions around the time of the claim. It said the damage wasn't consistent with storm damage. And it said the proximate cause of the damage was down to wear and tear, which is specifically excluded by the policy terms.

Catlin also found the bedroom damage was down to damp conditions which had built up over time due to poor ventilation in the bedroom. It said this part of the claim wasn't covered by the accidental damage section of the policy, because it specifically excludes damp.

Mrs N was unhappy with Catlin's decision. She provided Catlin with invoices from her roofer, which showed she'd had work done to the roof regularly over the past few years. The roofer also said he thought the damage to the roof had been down to a storm. Catlin considered what Mrs N had sent in, but didn't change its mind about her claim. So Mrs N's representative asked us to look into her complaint.

Our investigator didn't think Mrs N's complaint should be upheld. He thought the weather reports from the day of the damage showed there had been storm conditions. He felt the damage could be considered to be consistent with storm damage. But he didn't think the storm conditions were the dominant cause of the damage. He felt that the surveyor's report showed there'd been a gradual deterioration to the roof over time. So he considered Catlin had considered the roof claim fairly.

The investigator also thought Catlin had looked into the bedroom damage fairly. He felt it had been properly looked at under the accidental damage section of the policy. And he thought the surveyor's report showed the damage had been caused by damp. So he considered it was fair for Catlin to rely on the term excluding damage due to damp to turn down the claim.

Mrs N disagreed with the investigator. Her representative said she didn't feel the outcome was fair. So the complaint has been passed to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. Having done so, I think it was fair for Catlin to turn down Mrs N's claim. I'll explain why.

As the investigator explained, when looking at storm damage cases we ask three questions:

- were there storm conditions on or around the date of the claim?
- is the damage consistent with storm damage?
- were the storm conditions the main cause of the damage?

If the answer to any of these questions is “no” then the claim won't succeed.

Were there storm conditions on or around the date of the claim?

Catlin didn't think there were storm conditions around the date of the claim. I disagree. Like the investigator, I've looked at the weather reports from around the date of the claim. I can see that on the day Mrs N's tenant noticed the damage, there were wind speeds of up to 51mph in the area. Catlin hasn't defined what it means by a 'storm' in the policy. But I think wind gusts of this speed can fairly be considered to be storm conditions. That's because wind gusts at this speed can be capable of causing structural damage. That means I've decided the answer to the first question is 'yes'.

Is the damage consistent with storm damage?

Catlin doesn't think the damage was consistent with storm damage. I've thought about this. Roof damage, dislodged tiles and internal water damage following roof damage may happen after a storm. I think the damage seen could broadly be considered consistent with storm damage. So on balance, I think the answer to the second question is 'yes'.

Were the storm conditions the main cause of the damage?

I know Mrs N and her representative feel strongly that the storm winds were the main cause of the damage to Mrs N's property. They've provided invoices from a roofer showing that the roof was regularly maintained. And the roofer suggested that the '*dampness was caused by tiles being ruffled in storms*'. So I can understand why Mrs N feels Catlin should deal with her claim for storm damage.

But I have to weigh up this evidence against the report from Catlin's surveyor to decide whether I think it's most likely that the storm was the main cause of the damage. So I've considered both pieces of evidence very carefully.

The report says that the surveyor spoke to Mrs N's tenant, who'd noticed the damage. The report says: '*It was stated over the last few years there has been issue (sic) with the roof and water ingress.*' The report said: '*the latest event was noted when daylight could been (sic) seen entering the roof at the ridge.*' From what the tenant told the surveyor, it seems there'd been issues with water getting in through the roof over a period of a few years.

I've then thought about what the report says about what was causing the water to get in. It states there's no evidence the damage was caused by a one-off event of storm. Instead, it says: '*the roof is reaching the end of its design life... The ridge pointing is deteriorating as result of gradually operating cause.*'

The surveyor took photos during their visit which I've looked at closely. I can see there's moss on the roof and evidence of the repair work Mrs N's told us about. But in my view, this simply supports that the damage is most likely to have happened over a period of time. The repair work seems likely to have been in response to the earlier issues the tenant told Catlin about. And deterioration to the pointing isn't usually caused by a one-off event of storm. It's generally something which happens gradually, over time.

Based on everything I've seen, while I've taken into account Mrs N's roofer's comments, I find the surveyor's opinion more persuasive. I think it's more likely that the storm conditions simply showed up the existing problems with the roof, rather than being the main cause of the damage. And given what the surveyor said about the roof reaching the end of its design life and deterioration of the pointing over time, I think it was fair for Catlin to consider these issues as wear and tear.

Mrs N's policy does cover buildings damage due to storm. But the policy also says, under the storm section:

"What is not Covered

Damage caused by:

- *Wear or dry rot, rust, corrosions or **wear and tear** (my emphasis)."*

I think the damage to the roof was down to wear and tear, which isn't covered by the policy. So it follows that I think it was fair for Catlin to turn down Mrs N's roof damage claim.

The bedroom damage

Mrs N has accidental damage cover on her policy. I think this was the right section of the policy for Catlin to consider her bedroom damage claim under. Mrs N's roofer hasn't commented on the cause of the bedroom damage, so I've looked at what the surveyor's said about this.

The photos show patches of water damage in the bedroom and the report says there's mould in the room. The surveyor said: *'the rear right bedroom is suffering from condensation issues at the perimeter of the ceiling. At the time of our inspection the window vents were blocked up and there were no windows open.'* On this basis, Catlin decided the issues in the bedroom were down to lack of airflow causing damp.

I find the report and the photos persuasive evidence that lack of ventilation was the main cause of the water damage to the bedroom. The presence of mould also suggests that the room had been wet or damp for some time. So I turned to look at the accidental damage section of the policy. Under the 'what is not covered' section, it says:

"Damage from:

- *Damp, fungus wet or dry rot, mildew.'*

On this basis, I think the bedroom damage claim is excluded by the policy terms. So I've decided it was fair for Catlin to turn down the accidental damage claim.

Overall, while I'm sorry to disappoint Mrs N, I think Catlin has treated her fairly. I've decided it was fair for it to turn down her claims for roof damage and damage to the bedroom.

My final decision

For the reasons I've given above, my final decision is that I don't uphold Mrs N's complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs N to accept or reject my decision before 8 April 2020.

Lisa Barham
Ombudsman